

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 1**  
**Honorable Eunice Lee, Presiding**  
TBD, Courtroom Clerk  
191 North First Street, San Jose, CA 95113

**DATE: June 16, 2026    TIME: 9:00 A.M. and 9:01 A.M.**

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.  
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,  
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

**\*\*Please specify the issue to be contested when calling the Court and counsel\*\***

**LAW AND MOTION TENTATIVE RULINGS**

|                               |            |                                                           |                                                              |
|-------------------------------|------------|-----------------------------------------------------------|--------------------------------------------------------------|
| <b>9:01<br/>A.M.</b>          |            |                                                           |                                                              |
| <u><a href="#">LINE 1</a></u> | 23CV412119 | Susana<br>Hernandez et al<br>vs Alissa<br>Fernandez et al | <b>Petition for Minor's Compromise</b><br>Parties to appear. |

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9:00 A.M.

**Calendar Lines # 1**

**Case Name** Blossom Hill Estates Homeowners Associations vs Louise Wollert et al

**Case No.** 23CV409917

**Motion to Amend Clerical Error in Judgment and Order for Sale**

**I. BACKGROUND**

**A. BRIEF FACTUAL BACKGROUND**

On January 12, 2023, Plaintiff Blossom Hill Estates Homeowners Association (“The Association”) filed a Complaint against Defendant Louise C. Wollert for judicial foreclosure, breach of contract, common counts, and damages. The property at issue is 5554 Spinnaker Drive #4, San Jose, California 95123 (“Subject Property”). The Plaintiff served the Complaint via substituted service on January 31, 2024.<sup>1</sup> No timely response was filed. The Association entered default judgment against Defendant on July 6, 2023 and a judgment was entered on April 9, 2024. Default judgment in the amount of \$26,360.52 was authorized by the Honorable Evette Pennypacker.

**B. RELEVANT PROCEDURAL HISTORY**

On May 21, 2024, the Plaintiff filed a motion to amend judgment to include foreclosure of the lien and permit sale of the property located at 5554 Spinnaker Drive, #4, San Jose, California 95123 as prayed for in its Complaint. The plaintiff’s motion was heard on June 25, 2024 with the Honorable Shella Deen presiding. On July 25, 2024, Judge Deen executed an Order denying the plaintiff’s request on the grounds there was insufficient proof of the amendment. The Plaintiff filed a revised motion to amend on July 25, 2024. After the hearing, on October 3, 2024, the Honorable Shella Deen, once again denied the motion for lack of evidence. The motion was denied without prejudice. On October 28, 2024, the plaintiff filed its third motion to amend the judgment. On May 20, 2025, the Honorable Deen denied the motion without prejudice a third time for lack of service. On that same day, the plaintiff filed its fourth motion to amend. On August 19, 2025,<sup>2</sup> the Honorable Shella Deen heard the motion and granted the motion and directed Plaintiff to file the amended judgment within 10 days of the order. The Amendment to Judgment was authorized by Judge Deen and filed on October 1, 2025. The Court notes that no opposition papers were filed by the defendant in any of the four hearings and the motion was deemed unopposed. On October 30, 2025, a writ of possession was filed.

**C. PRESENT MOTION TO AMEND**

On May 8, 2026, Plaintiff The Association filed this motion to amend a clerical error in judgment and order for sale pursuant to Code of Civil Procedure section 473(d). The Association seeks to amend a sentence to the July 6, 2023, Default Judgment to include an Order for Sale on the August 27, 2025 Judgment. Specifically, Plaintiff seeks to amend the sentence to include the following sentence: *“The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.”* (Plaintiff’s motion, p. 2). Plaintiff asserts the omission of that sentence was a clerical error because the relief was expressly pled in its Complaint for Judicial Foreclosure, Breach of Contract, Common Counts and Damages filed on January 12, 2023. (Plaintiff’s motion, p. 2 and “Compliant”). The motion was accompanied by a proof of service to Defendant Louise Wollert (“Wollert”) indicating U.S. mail service on May 8, 2026.

<sup>1</sup> Plaintiff asserts that the default was entered on January 31, 2023. (See, Plaintiff’s Motion, p., 2). However, per the Court records, this is an error. Default was entered on January 31, 2024.

<sup>2</sup> Plaintiff indicates in its moving papers that on August 27, 2025, the Honorable Shella Deen entered an Amendment to the Judgment dated April 9, 2024 and Order of Sale (the “Judgment”). This date conflicts with the Court records as stated above. The hearing occurred on August 19, 2025 and the formal Order and Amended Judgment was signed and authorized on October 1, 2025.

On May 21, 2026, Plaintiff filed a notice to amend to also add a specific sentence: “*The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.*” This notice was accompanied by a proof of service including U.S. Mail and Certified mail service to defendant Wollert on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: Plaintiff’s application for an order correcting a clerical error in judgment and order for sale; memorandum of points and authorities; Declaration of Jordan M. O’Brien in support of the plaintiff’s motion and attached Exhibits A-F (totaling 64 pages); notice of hearing of amendment (totaling 3 pages); proof of services; and the pleadings.

## **II. LEGAL STANDARD**

Code of Civil Procedure section 473 subdivision (d) provides, “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code of Civ. Proc. §473(d); see also *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228, 1238 [“It is true that a court has the inherent power to correct clerical error in its records at any time so as to conform its records to the truth, but it may not amend a judgment to substantially modify it or materially alter the rights of the parties under its authority to correct clerical error.”]).

“A nunc pro tunc order is a retroactive entry by the court. It is effective at the date which the court states it is to be effective, not at the date it was made. It is an exercise of inherent power of the court for the purpose of doing justice between the parties.” (*Wexler v. Goldstein* (1956) 146 Cal.App.2d 410, 412). It is “generally limited to correcting clerical errors[.]” (*People v. Borja* (2002) 95 Cal.App.4th 481, 485).

Once a judgment has been entered, a trial court loses most of its jurisdiction to modify or set it aside. (See *APRI Ins. Co. v. Superior Court* (1999) 76 Cal.App.4th 176, 181 [“A court may reconsider its order granting or denying a motion and may even reconsider or alter its judgment so long as judgment has not yet been entered. Once judgment has been entered, however, the court may not reconsider it and loses its unrestricted power to change the judgment. It may correct judicial error only through certain limited procedures such as motions for new trial and motions to vacate the judgment.”]). One of the permitted grounds for amending a judgment is to correct a clerical error. (Code of Civ. Proc. §473(d)).

## **III. ANALYSIS**

This is the fifth request for amendment to the default judgment by the plaintiff. Plaintiff asserts that there was a clerical error in default under Code of Civil Procedure section 473(d). The Association seeks to amend a sentence to the July 6, 2023, Default Judgment<sup>3</sup> to include an Order for Sale on the August 27, 2025 Judgment. The plaintiff seeks to add specific language as follows: “*The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.*” Plaintiff categorizes the addition of

<sup>3</sup> In its moving papers., the plaintiff seeks an amendment to the July 6, 2023, “Default Judgment,” but court records indicate that the July 6, 2023 is the Entry of Default and the Default Judgment was entered on April 9, 2024.

this sentence as a clerical error on the grounds that the relief was expressly pled in its Complaint for Judicial Foreclosure, Breach of Contract, Common Counts and Damages filed on January 12, 2023. (Plaintiff's motion, p. 2 and "Compliant). The Plaintiff does not state a specific section in its pleadings.

Upon the Court's own review, the relevant portion appears in the Prayer for Relief, sections 3 and 7 of the Plaintiff's Complaint as follows:

- 3. Judgment that the lien be foreclosed, that the Subject Property be sold according to law by a levying officer, that the proceeds of the sale be applied in payment of the amounts due to the Association, that Defendant and all persons claiming an interest to the property, subsequent to the filing of the lien, either as lien claimants, judgment creditors, claimants under a junior trust deed, purchasers, lienholder or otherwise, be barred and foreclosed from all rights, claims, interest, or equity of redemption the Subject Property, and every part of the Subject Property, if and when the time for redemption has elapsed; and
- 7. Judgment and execution for the Association against Defendant for any deficiency that may remain after applying all the proceeds of the sale of the Subject Property properly applicable to the satisfaction of the amounts found due by the Court; (Complaint).

The Court believes this request stretches the limits of a clerical error and from a plain language reading, the addition of the sentence is not clerical. However, based on the totality of the factual and procedural background and that these sections provide grounds that are consistent with the default judgment, order for sale of the Subject Property at issue, and does not substantially modify or materially alter the rights of the parties under its authority, the court will allow the amendment.

The motion as the other four prior motions for amendments filed by the plaintiff and served on the defendant is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

#### **IV. CONCLUSION**

Based on the foregoing, and the motion being unopposed, the Court grants the amendment to add the following language to the Default Judgment: "The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney's fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale."

The Court will prepare the formal Order.

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|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Calendar Lines # 2</b>                                                                                                                                                                                                                                                                                                              |
| <b>Case Name</b> Antonieta Madrigal et al vs Lucile Salter Packard Children's Hospital at Stanford et al                                                                                                                                                                                                                               |
| <b>Case No.</b> 23CV414581                                                                                                                                                                                                                                                                                                             |
| <b>Motion for Summary Adjudication</b>                                                                                                                                                                                                                                                                                                 |
| Before the court is defendant's motion for summary adjudication against plaintiffs' second and eighth causes of action, plaintiff Madrigal's third cause of action, and plaintiff Wolkoff's fifth, sixth, and seventh causes of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. |

## **I. BACKGROUND**

In this action, plaintiffs Antonieta Madrigal (“Madrigal”), Veronica Jacquez (“Jacquez”), and Rebecca Wolkoff (“Wolkoff”) allege they each requested exemption from the mandatory COVID-19 vaccination order to accommodate sincerely held religious beliefs but that defendant Lucile Salter Packard Children’s Hospital at Stanford (“Hospital”) took action or engaged in a course or pattern of conduct, substantially motivated by plaintiffs’ religious expression, that materially and adversely affected the terms, conditions, or privileges of each plaintiff’s employment. (First Amended Complaint (“FAC”), ¶¶20, 69, 71, 72).

On April 11, 2023, plaintiffs Madrigal, Jacquez, Shanel Walls (“Walls”), and Wolkoff filed a complaint against various defendants, including defendant Hospital, asserting causes of action for:

- (1) Religious Discrimination
- (2) Religious Discrimination – Failure to Engage in Interactive Process
- (3) Religious Discrimination – Failure to Provide Reasonable Accommodations
- (4) Retaliation
- (5) Wrongful Discharge in Violation of Public Policy

On October 25, 2023, plaintiffs filed the now operative FAC which asserts causes of action for:

- (1) Religious Discrimination
- (2) Religious Discrimination – Failure to Engage in Interactive Process
- (3) Religious Discrimination – Failure to Provide Reasonable Accommodations
- (4) Retaliation
- (5) Disability Discrimination
- (6) Disability Discrimination – Failure to Engage in Interactive Process
- (7) Disability Discrimination – Failure to Provide Reasonable Accommodations
- (8) Wrongful Discharge in Violation of Public Policy

On October 26, 2023, plaintiffs filed a request for dismissal of the complaint by plaintiff Walls. Also on October 26, 2023, plaintiffs filed a request for dismissal of the complaint against all defendants except defendant Hospital.

On November 28, 2023, defendant Hospital filed an answer to the plaintiffs’ FAC.

On March 26, 2026, defendant Hospital filed the motion now before the court, a motion for summary adjudication of plaintiffs’ FAC. Specifically, defendant Hospital moves for summary adjudication of the third cause of action as to plaintiff Madrigal; the second cause of action as to all plaintiffs; the eighth cause of action as to all plaintiffs; and the fifth through seventh causes of action which are asserted by plaintiff Wolkoff only.

## **II. LEGAL STANDARD**

### **A. PROCEDURAL VIOLATION**

As a preliminary matter, the court notes that plaintiffs’ opposition is untimely filed. Code of Civil Procedure section 437c, subdivision (b)(2) states, “An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.” Based on a hearing date of June 16, 2026, plaintiffs’ opposition was due to be filed on May 27, 2026. Plaintiffs did not file opposition until May 28, 2026, one calendar day late.

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Since the court has discretion to consider a late filed paper, since defendant has not demonstrated any prejudice from the late filing, and to avoid the expenditure of any further judicial resources, the court will look past this procedural violation and consider the opposition on its merits. However, plaintiffs and their counsel are hereby admonished for the procedural violation. Any future violation may result in the court's refusal to consider the untimely filed papers.

### **B. REQUEST FOR JUDICIAL NOTICE AND EVIDENTIARY OBJECTION**

The request for judicial notice in support of defendant's motion for summary adjudication, etc., exhibits 4 and 5, are GRANTED. Plaintiffs' objections thereto are OVERRULED. The remainder of defendant Hospital's request for judicial notice is DENIED as unnecessary. (See *Duarte v. Pacific Specialty Insurance Company* (2017) 13 Cal.App.5th 45, 51, fn. 6—denying request where judicial notice is not necessary, helpful or relevant).

The request for judicial notice in support of plaintiffs' opposition to motion for summary ... adjudication, numbers 1 and 2, are GRANTED. The remainder of plaintiffs' request for judicial notice is DENIED as unnecessary. (See *Duarte v. Pacific Specialty Insurance Company* (2017) 13 Cal.App.5th 45, 51, fn. 6—denying request where judicial notice is not necessary, helpful or relevant).

Plaintiffs' objections to declaration of Neville Christopher Comma in support of opposition to defendant's motion for summary adjudication are OVERRULED.

### **C. SUMMARY ADJUDICATION**

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). "[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741). "A party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. 'A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.'" (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted]). Code of Civil Procedure section 437c(t): "[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that *does not completely dispose* of a cause of action, affirmative defense, or issue of duty pursuant to" subdivision (t).

Pursuant to Code of Civil Procedure section 437c(p)(1), the plaintiff moving for summary judgment must satisfy the initial burden of proof by presenting proving each element of a cause of action. In reviewing the motion, courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389; *Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99). Once the plaintiff has met that burden, the burden shifts to the defendant to

show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1)). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166).

A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*). “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

Code of Civil Procedure section 457c(c): “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119). “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82). If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544).

### **III. ANALYSIS**

#### **A. DEFENDANT HOSPITAL’S MOTION FOR SUMMARY ADJUDICATION OF THE SECOND, FIFTH, AND SEVEN CAUSES OF ACTION OF THE FAC IS GRANTED.**

In the plaintiffs’ opposition, plaintiffs expressly “concede and agree to dismiss the Second Cause of Action for Religious Discrimination – Failure to Engage in Interactive Process, the Fifth Cause of Action for Disability Discrimination, the Sixth Cause of Action for Disability Discrimination – Failure to Engage in Interactive Process, and the Seventh Cause of Action for Disability Discrimination – Failure to Provide Reasonable Accommodation.”<sup>4</sup>

Plaintiffs did not file a Request for Dismissal of the second, fifth, sixth, or seventh causes of action of the FAC prior to the hearing on defendant Hospital’s motion for summary adjudication. As such and based upon plaintiff’s express concession, defendant Hospital’s motion for summary adjudication of the second, fifth, sixth, and seventh causes of action of plaintiffs’ FAC is GRANTED.

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<sup>4</sup> See page 4, lines 23 – 27, of Plaintiffs’ [memorandum of points and authorities in] Opposition to Defendant Lucile Salter Packard Children’s Hospital at Stanford’s Motion for Summary Adjudication.

**B. DEFENDANT HOSPITAL'S MOTION FOR SUMMARY ADJUDICATION OF THE THIRD CAUSE OF ACTION OF THE FAC IS GRANTED.**

Plaintiff Madrigal's third cause of action is explicitly premised upon Government Code section 12940, subdivision (l), which states, in relevant part:

It is an unlawful employment practice . . . For an employer . . . to discriminate against a person in compensation or in terms, conditions, or privileges of employment because of a conflict between the person's religious belief or observance and any employment requirement, unless the employer . . . demonstrates that it has explored any available reasonable alternative means of accommodating the religious belief or observance, including the possibilities of excusing the person from those duties that conflict with the person's religious belief or observance or permitting those duties to be performed at another time or by another person, but is unable to reasonably accommodate the religious belief or observance without undue hardship, as defined in subdivision (u) of Section 12926, on the conduct of the business of the employer or other entity covered by this part.

In *California Fair Employment & Housing Com. v. Gemini Aluminum Corp.* (2004) 122 Cal.App.4th 1004, 1011, the court explained:

There are three elements to a prima facie case under section 12940, subdivision (l): the employee sincerely held a religious belief; the employer was aware of that belief; and the belief conflicted with an employment requirement. [Citation omitted]. Once the employee establishes a prima facie case with sufficient evidence of the three elements, the burden shifts to the employer to establish that "it initiated good faith efforts to accommodate or no accommodation was possible without producing undue hardship. [Citations]." [Citation omitted].

In moving for summary adjudication of plaintiff Madrigal's third cause of action, defendant Hospital assumes, *arguendo*, that plaintiff Madrigal has established a prima facie case (i.e., Madrigal sincerely held a religious belief that the COVID-19 vaccines were created and/or tested using tissues from aborted fetuses and it would be morally unacceptable to Madrigal and her Catholic faith to accept and introduce such vaccines into her body/ nasal swab test also morally unacceptable to Madrigal and her Catholic faith because it contains chemicals which would conflict with Madrigal's religious path to purify her body; defendant Hospital was made aware of Madrigal's religious beliefs; Madrigal's religious beliefs conflicted with defendant Hospital's obligation to comply with California Department of Public Health (CDPH) order(s) and defendant Hospital's policy for its employees to be vaccinated against COVID-19 or for unvaccinated workers to test at least twice weekly and wear a surgical mask or higher level respirator).

Defendant Hospital concedes, for purposes of summary adjudication, that the burden has shifted to it to establish either (1) it initiated good faith efforts to accommodate Madrigal's religious beliefs; or (2) that no accommodation was possible without producing undue hardship. Defendant Hospital argues it provided plaintiff Madrigal a reasonable accommodation, i.e., submit to twice-weekly testing and wear a N95 mask.<sup>5</sup>

Any reasonable accommodation is sufficient to meet an employer's obligations. However, the employer need not adopt the most reasonable accommodation nor must the employer accept the remedy preferred by the employee. (*Ansonia Board of Education v. Philbrook* (1986) 479 U.S. 60, 68 [93 L. Ed. 2d 305, 314-315, 107 S. Ct. 367]). The reasonableness of the employer's efforts to accommodate is determined on a case by case basis. What is reasonable for one employee may not be reasonable for another. (*Smith v. Pyro Min. Co.* (6th Cir. 1987) 827 F.2d 1081, 1085). The obligation to search for an acceptable solution is bilateral. Employees also have the obligation to make a good

<sup>5</sup> See Separate Statement of Undisputed Material Facts in Support of Defendant's Motion for Summary Adjudication, etc. ("Defendant Hospital UMF"), Fact Nos. 75, 78, 79, and 81 – 84.

faith effort to explore alternatives. (*Brener v. Diagnostic Center Hospital* (5th Cir. 1982) 671 F.2d 141, 145-146; *Smith v. Pyro Min. Co.*, *supra*, at p. 1085).

"[O]nce it is determined that the employer has offered a reasonable accommodation, the employer need not show that each of the employee's proposed accommodations would result in undue hardship." (1 Rossein, *Employment Discrimination Law and Litigation*, *supra*, § 3.4(1), p. 3-7). "[W]here the employer has already reasonably accommodated the employee's religious needs, the . . . inquiry [ends]." (*Ansonia Board of Education v. Philbrook*, *supra*, 479 U.S. at p. 68 [93 L. Ed. 2d at p. 315]).

(*Soldinger v. Northwest Airlines* (1996) 51 Cal.App.4th 345, 370-371 (*Soldinger*)).

More specifically, defendant Hospital proffers evidence that on July 26, 2021, the CDPH issued a State Public Health Officer Order ("July 26 Order") requiring health facilities in the state – and specifically acute care hospitals such as [defendant Hospital] – to have in place a program that verifies the COVID-19 vaccination status of all workers, tracks workers' vaccination status, tests unvaccinated workers for COVID-19 at least twice weekly and provide unvaccinated workers with respirators such as N95 masks.<sup>6</sup> For testing, the July 26 Order permitted the use of only PCR testing or antigen testing that had Emergency Use Authorization by the FDA or be operating per the Laboratory Developed Test requirements by the U.S. Centers for Medicare and Medicaid ("CMS").<sup>7</sup> A CDPH order issued August 5, 2021 required unvaccinated workers who qualified for an exemption to test for COVID-19 twice weekly and wear a surgical mask or a higher-level respirator such as an N95 mask.<sup>8</sup> At the time, the only available testing options involved nasal swab testing.<sup>9</sup> Plaintiff Madrigal requested an accommodation that does not include routine PCR nasal swab testing.<sup>10</sup> However, plaintiff Madrigal was not aware of any COVID testing in 2021 that did not require a nasal swab.<sup>11</sup> Plaintiff Madrigal was asking for a religious accommodation to remain in her patient facing maternity nurse role, while not receiving the COVID-19 vaccine and not testing at all.<sup>12</sup>

In opposition, plaintiff Madrigal concedes that in August and September 2021, she was not aware that other acceptable tests were available but offers evidence that alternatives to the specific test plaintiff Madrigal found objectionable, ethylene-oxide-sterilized nasal swab COVID-19 tests, were available.<sup>13</sup> According to plaintiff Madrigal, defendant Hospital was, or should have been, aware that other tests were available that were acceptable under the requirements of the CDPH orders.<sup>14</sup>

As the court understands, plaintiff Madrigal offers these additional facts to suggest that there is a triable issue of material fact with regard to whether the accommodation offered by defendant Hospital was reasonable or not. Plaintiff Madrigal contends the onus should have been on defendant Hospital to identify available alternative testing or, stated differently, defendant Hospital did not act reasonably in failing to identify available alternative testing. The court, however, rejects this assertion as *Soldinger* clearly explained that the obligation to search for an acceptable solution is "bilateral." Plaintiff Madrigal also suggests she would have been willing to do an alternative non-invasive test such as saliva testing.<sup>15</sup> In the court's view, this statement by plaintiff Madrigal is offered in hindsight and not

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<sup>6</sup> See Defendant Hospital UMF, Fact No. 78.

<sup>7</sup> See Defendant Hospital UMF, Fact No. 79.

<sup>8</sup> See Defendant Hospital UMF, Fact No. 84.

<sup>9</sup> See Defendant Hospital UMF, Fact No. 90.

<sup>10</sup> See Defendant Hospital UMF, Fact No. 92.

<sup>11</sup> See Defendant Hospital UMF, Fact No. 93.

<sup>12</sup> See Defendant Hospital UMF, Fact No. 94.

<sup>13</sup> See Plaintiff's Additional Fact, Nos. 79 – 87.

<sup>14</sup> See Plaintiff's Additional Fact, No. 88.

<sup>15</sup> See page 17, lines 7 – 8, of Plaintiff's [memorandum of points and authorities in] Opposition to Defendant Lucile Salter Packard Children's Hospital at Stanford's Motion for Summary Adjudication.

contemporaneous with the events at issue. Plaintiff Madrigal's opposition also indicates she did not refuse testing in total, but the underlying evidence in support of such statement is not a declaration or testimony by plaintiff Madrigal, but is instead found in the declaration of plaintiff Madrigal's expert who avers, "I understand that Plaintiff Madrigal did not refuse testing in total."<sup>16</sup> Plaintiff Madrigal's expert does not set forth a foundation for such a statement and plaintiff Madrigal's expert lacks personal knowledge to testify about plaintiff Madrigal's intentions.

The undisputed evidence before the court is that plaintiff Madrigal requested an accommodation "that does not include routine PCR nasal swab testing," but plaintiff Madrigal was not aware of any other available alternative testing in August/ September 2021. There is no admissible evidence in the record before the court that plaintiff Madrigal expressed a willingness to submit to any alternative testing. On the undisputed facts and circumstances presented, the court finds defendant Hospital offered plaintiff Madrigal a reasonable accommodation to avoid COVID-19 vaccination.<sup>17</sup> "Where the employer has already reasonably accommodated the employee's religious needs, the inquiry ends." (*Soldinger, supra*, 51 Cal.App.4th at p. 371; punctuation and citation omitted). [The court need not reach defendant Hospital's additional argument(s) that no accommodation was possible without producing undue hardship].

Accordingly, defendant Hospital's motion for summary adjudication of the third cause of action of the FAC as to plaintiff Madrigal is GRANTED.

**C. DEFENDANT HOSPITAL'S MOTION FOR SUMMARY ADJUDICATION OF THE EIGHTH CAUSE OF ACTION [WRONGFUL DISCHARGE IN VIOLATION OF PUBLIC POLICY] OF THE FAC IS GRANTED.**

"The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (*Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, 973).

In particular, plaintiffs' eighth cause of action alleges that it was "a fundamental policy of the State of California that Defendants cannot discriminate and/or retaliate against any employee on the basis of religious creed." (FAC, ¶149). Plaintiffs' "expression of their religious creed and the conflict between the person's religious belief or observance and the employment requirement ... and the need for accommodation was a substantial motivating reason and/or factor in Defendants' taking adverse employment actions against Plaintiffs, including placing them on an indefinite unpaid leave." (FAC, ¶151).

In their opposition, plaintiffs clarify that, "In this case, the policy that was violated is set forth in Government Code §12940(1) of the Fair Employment and Housing Act," i.e., plaintiffs were terminated based upon their "requests for religious accommodation to [defendant Hospital] based on their sincerely held religious beliefs and the conflict between those beliefs and the work requirement to take a COVID-19 vaccine."<sup>18</sup>

"California has adopted the three-stage burden-shifting test established by the United States Supreme Court for trying claims of discrimination ... based on a theory of disparate treatment." (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354).

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<sup>16</sup> See ¶12(i) to the Declaration of Jennifer Smith, Ph.D found at Exhibit 16 to Plaintiff's Compendium of Evidence in Support of Opposition, etc.

<sup>17</sup> In other contexts, reasonableness is typically a question of fact but can be decided as a matter of law where the evidence is undisputed and only one reasonable inference can be drawn from the evidence. See, e.g., *Ghazarian v. Magellan Health, Inc.* (2020) 53 Cal.App.5th 171, 187; see also *Guido v. Koopman* (1991) 1 Cal.App.4th 837, 843.

<sup>18</sup> See page 19, lines 24 – 25, and page 20, lines 10 – 14, of Plaintiff's [memorandum of points and authorities in] Opposition to Defendant Lucile Salter Packard Children's Hospital at Stanford's Motion for Summary Adjudication.

the employer who seeks to resolve the matter by summary judgment must bear the initial burden of showing the action has no merit. [Citation]. The employer carries its burden if, inter alia, it 'establish[es] an undisputed legitimate, nondiscriminatory basis for [the employment decision].' [Citation]. Absent 'substantial responsive evidence . . . of the untruth of the employer's justification or a pretext, a law and motion judge may summarily resolve the discrimination claim.' [Citation]. (*Slatkin v. Univ. of Redlands* (2001) 88 Cal.App.4th 1147, 1156).

Defendant Hospital moves for summary adjudication of this eighth cause of action by relying on the [*McDonnell-Douglas*] burden shifting framework and proffering evidence that it terminated the plaintiffs here (not because of their request for religious accommodation), but because they did not comply with the COVID-19 vaccination requirement nor did they obtain approval for a religious accommodation and were, therefore, placed on administrative leave.<sup>19</sup> When given the opportunity to reapply for their former positions by participation in the Job Search Program, each of the plaintiffs declined and were terminated for that reason.<sup>20</sup>

In opposition, plaintiffs undertake an analysis of whether Government Code section 12940, subdivision (l), is a sufficient public policy to support a wrongful termination claim. (See *Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894—"for a policy to support a wrongful discharge claim, it must be: (1) delineated in either constitutional or statutory provisions; (2) "public" in the sense that it "inures to the benefit of the public" rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) substantial and fundamental.")

The court finds this analysis by plaintiffs somewhat odd as there is no argument or suggestion by defendant Hospital that a violation of Government Code section 12940, subdivision (l), cannot serve as the basis for a wrongful termination claim. Defendant Hospital has not questioned whether plaintiffs have sufficiently pleaded their eighth cause of action.

What the court finds lacking in plaintiffs' opposition is any citation to "substantial responsive evidence . . . of the untruth of the employer's justification or a pretext" for terminating plaintiffs' employment and so under the *McDonnell-Douglas* burden shifting framework discussed above, the court may summarily resolve this eighth cause of action.

Accordingly, defendant Hospital's motion for summary adjudication of the eighth cause of action of the FAC is GRANTED.

#### **IV. CONCLUSION**

Based on the foregoing, the Court makes the following Order: Defendant Hospital's motion for summary adjudication of the second, fifth, sixth, and seventh causes of action of plaintiffs' FAC is GRANTED.

Defendant Hospital's motion for summary adjudication of the third cause of action of the FAC as to plaintiff Madrigal is GRANTED.

Defendant Hospital's motion for summary adjudication of the eighth cause of action of the FAC is GRANTED.

The Court will prepare the formal Order.

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<sup>19</sup> See Defendant Hospital UMF, Fact Nos. 103, 120, 130.

<sup>20</sup> See Defendant Hospital UMF, Fact Nos. 114, 116, 118, 124, 126, 128, 141, 143, 145.

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| <b>Calendar Lines # 3</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Case Name</b> Robert Schraner et al vs Satvir Singh et al                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Case No.</b> 24CV434462                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Motion for Terminating, Evidentiary, and/or Monetary Sanctions</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <p><b>I. <u>BACKGROUND</u></b></p> <p><b>A. BRIEF FACTUAL BACKGROUND</b></p> <p>On This case stems from a multi-vehicle truck versus motor vehicle accident that occurred on May 9, 2022 on southbound Interstate-880 in San Jose, California. At the time of the incident, Defendant Satvir Singh was driving a 2017 Freightliner Cascadia tractor and trailer. Plaintiffs were drivers and/or passengers in one of the vehicles involved in the accident.</p> <p><b>B. RELEVANT PROCEDURAL BACKGROUND</b></p> <p>Two separate Complaints were filed against Defendants Satvir Singh and Golden Bird Inc. On October 11, 2024, parties stipulated to consolidating the pending cases: <i>Robert Scraner, Kha Le, and Seth Hofman vs. Satvir Singh, Gold Bird Inc., and Does 1 through 10</i> (Santa Clara County Case No.: 24CV434462) and <i>Edgar Nunez and Adrian Villalobos</i> (Santa Clara County Case No.: 24CV438580), which the Honorable Shella Deen granted on October 3, 2024. Santa Clara County Case No. was designated the lead case: 24CV434462.</p> <p>On March 25, 2025, Defendants filed a prior motion to compel Plaintiff's responses to written discovery. The Honorable Deen awarded sanctions against the plaintiff in the amount of \$670.50 that was to be paid within 10 days of service of the court's tentative ruling. Defendants state that the plaintiff failed to abide by the court order. Further, Honorable Deen addressed the Order to Show Cause for failure to appear by plaintiffs Edgar Nunez and Adrian Villalobos and their attorney Joseph Duc Dang and dismissed Plaintiff Edgar Nunez and Adrian Villalobos's Complaint without prejudice (Case No. 24CV438580 only). On September 25, 2025, Plaintiffs Edgar Nunez and Adrian Villalobos filed a motion to set aside the dismissal under Code of Civil Procedure section 473(b), which this Court heard on January 27, 2026 and granted.</p> <p>On March 24, 2026, Defendants Satvir Singh and Golden Bird Inc. filed a motion for terminating, evidentiary (precluding plaintiff from offering any evidence of injuries at trial), and/or monetary sanctions in the amount of \$1,290.00 against Plaintiffs Edgar Nunez and Adrian Villalobos (Case No. 24CV438580 only) for engaging in a continued and pervasive misuse of discovery process. Defense emphasizes that trial is set for January 4, 2027 and the defendants will be significantly prejudiced should this matter proceed without requested sanctions. (Plaintiff's motion, p. 2). The motion was accompanied by a proof of service indicating electronic mail and mail service on that same day.</p> <p>The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489).</p> <p>The Court carefully reviewed the following: Defendants' notice of motion and memorandum of points and authorities (totaling 9 pages); the Declaration of Darren W. Epps in support of Defendants' motion and attached Exhibits A-D (totaling 18 pages); proof of services; and the pleadings.</p> <p>//</p> |